

Tentative Rulings for August 13, 2026 Department 2

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 2 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
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- Meeting Number: **161 143 8184**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2402474	PEREZ vs LE	MOTION FOR CONTINUANCE

Tentative Ruling:

Motion Denied without prejudice. No proof of service filed.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2402474	PEREZ vs LE	MOTION FOR CHANGE OF VENUE; DECLARATION OF LISA PEREZ

Tentative Ruling:

Motion Denied without prejudice. No proof of service filed.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2600422	MARTINEZ vs BUCKEYE RETIREMENT CO., LLC	ANTI-SLAPP MOTION (SPECIAL MOTION TO STRIKE)

Tentative Ruling:

Summary of Ruling:

The Court grants the Special Motion to Strike Plaintiffs' Complaint as to all causes of action alleged against Defendant Walker alleged under the 1st, 2nd, 4th, 5th, 6th, and 7th cause of action for (1) extrinsic fraud, (2) abuse of process, (3) aiding and abetting, (4) civil conspiracy, (5) litigation privilege avoidance, and (6) quiet title/declaratory relief, respectively.

Defendant Walker has satisfied the first-prong showing of demonstrating that the causes of action arise out of activities which are protected under the anti-SLAPP statute (Code Civ. Proc., § 426.16(e).) Once the burden shifted to Plaintiffs, they fail to satisfy the second prong of the anti-SLAPP analysis by failing to demonstrate a reasonable probability of prevailing on the causes of action alleged against Defendant Walker.

Defendant Walker's Request for Judicial Notice Exhibits A-D is granted to the extent the matters for which judicial notice is requested exist in court records or files, but they are not accepted for the truth of the matters stated, unless the matters are indisputably true. (Evid. Code, §452(d) [judicial notice may be taken of records of any court of this state]; See *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564-1569.)

In light of this ruling to grant the motion, Defendant Walker's concurrently filed demurrer is rendered moot.

Factual / Procedural Context:

Defendant Holly Walker brings this Anti-SLAPP motion to strike the Verified Complaint of Plaintiffs, Andres Martinez Jr. and Yvette Y. Heredia, which alleges the causes of action for (1) extrinsic fraud/ fraud on the court, (2) abuse of process, (3) wrongful foreclosure, (4) aiding and abetting, (5) civil conspiracy, (6) litigation privilege avoidance allegations, and (7) quiet title/ declaratory relief. All but the third cause of action for wrongful foreclosure are alleged against Defendant Walker.

This action ensued after Plaintiffs were allegedly evicted from their residence in Corona, California, after it was sold at a sheriff's sale in satisfaction of a 2007 judgment entered against Plaintiff Martinez in a separate action in Kern County. Plaintiffs allege that their jointly owned property was wrongfully sold at the sheriff's sale which stripped Plaintiff Heredia's 50% share of the equity in the property whereas the judgment was entered solely against Plaintiff Martinez. (Complaint, pg. 3, ln. 3-7.) Plaintiffs allege that the judgment for conversion and fraud was wrongfully entered against Plaintiff Martinez without a fair adjudication after the court's granting of an unopposed summary judgment morion of Buckeye Retirement Co., LLC (also a Defendant in the present action) filed through its attorney, Holly Walker. (Complaint, ¶¶ 4-9.) Plaintiffs assert that the Kern County judgment was therefore obtained through extrinsic fraud or extrinsic mistake, depriving Plaintiff Martinez of his day in court. (Complaint, ¶ 10.) Many years after the allegedly wrongful sale of their home, on February 24, 2026, Plaintiff filed the instant action in this Court.

In the instant motion to strike pursuant to anti-SLAPP statute, Defendant Walker contends each and every allegation against her relates to alleged statements that she made in court proceedings in representing a client, Buckeye Retirement Corp., Co. L.L.C., LTD, in litigation which are protected activities under the Anti-SLAPP statute. Defendant Walker also argues that Plaintiffs' claims are without merit and barred by the litigation privilege (Civ. Code, § 47(b)) and that Plaintiffs' tort claims are barred by the applicable statute of limitations.

In summary, the motion is granted.

Analysis

I. Anti-SLAPP Motion

"The Legislature enacted...anti-SLAPP statute [strategic lawsuit against public participation]...to provide a procedural remedy to dispose of lawsuits that are brought to chill the valid exercise of constitutional rights. [Citation.]" (*Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1055.) Code of Civil Procedure section 425.16 provides a two-step test in determining whether a cause of action constitutes a SLAPP. (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 88; Code Civ. Proc., §425.16(b)(1).) First, the defendant must make the "threshold showing" that the challenged cause of action arises from "protected speech or petition activity." (*Id.*) "[T]he statutory phrase 'cause of action...arising from' means simply that the defendant's act underlying the plaintiff's cause of action must *itself* have

been an act in furtherance of the right of petition or free speech.” (*City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 78, original italics.) This step is satisfied if the defendant shows that the challenged claims arise from one of the four protected activities provided under Code Civ. Proc., §425.16(e)¹.

In the first step of the analysis, the moving defendant must identify all allegations of protected activities and demonstrate that the challenged claims arise from those activities. (*Shahbazian v. City of Rancho Palos Verdes* (2017) 17 Cal.App.5th 823; *Baral v. Schnitt* (2016) 1 Cal.5th 376.) In so doing, the court is “not limited to examining the allegations of the complaint alone but rather considers the pleadings and the factual material submitted in connection with the special motion to strike.” (*Contreras v. Dowling* (2016) 5 Cal.App.5th 394, 408.)

Second, “[i]f the court finds the defendant has met this threshold burden, it then determines whether the plaintiff has demonstrated a probability of prevailing on the merits of the plaintiff’s claim.” (*Navellier v. Sletten, supra*, 29 Cal.4th at 88-89.) To meet this second step, the plaintiff must demonstrate: (1) “that the complaint is both legally sufficient” and (2) “supported by a...prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited. [Citation.]” (*Id.* at 89.) In analyzing this step, the court considers “the pleadings and supporting and opposing affidavits stating the facts upon which the liability or defense is based.” (Code Civ. Proc., §425.16(b).)

II. Defendant Walker has made the “threshold showing” that the challenged causes of action arise from “protected speech or petition activity.”

Defendant Walker argues that each and every allegation against her relates to alleged statements that she made in court proceedings in representing a client in litigation, which come within the provision of Code of Civil Procedure section 425.16 that protects speech made in an official proceeding authorized by law or made in connection with an issue under consideration in an official proceeding (Code Civ. Proc., § 425.16(e)(2)). Defendant Walker also argues that, once the burden shifts to Plaintiffs to demonstrate the probability of prevailing on the merits of their claims, Plaintiffs cannot meet this burden because Defendant has a defense of litigation privilege pursuant to Civil Code section 47, subdivision (b).

Defendant Walker correctly argues that the causes of action asserted against her arise out of protected activities. “As is true with summary judgment motions, the issues in an anti-SLAPP motion are framed by the pleadings.” [Citations.]” (*Medical Marijuana, Inc. v. Project CBD.com* (2020) 46 Cal.App.5th 869, 883.) “Thus, the act or acts underlying a claim for purposes of an anti-SLAPP statute is determined from the

¹ (1) writing or oral statement made before a legislative, executive, or judicial proceeding; (2) writing or oral statement made in connection with an issue under consideration or review by a legislative, executive, or judicial body; (3) written or oral statement made in place open to the public or a public forum in connection with an issue of public interest; (4) any conduct in furtherance of the exercise of the constitutional right of petition or free speech in connection with a public issue or an issue of public interest. (Code Civ. Proc., §425.16(e)(1)-(4).)

plaintiffs' allegations." [Citation.] (*Ibid.*) Here, in support of the causes of action against Defendant Walker, Plaintiffs allege that Walker engaged in the following activities:

In 2006-2007, Buckeye, through its attorney Holly Walker, filed a civil action in Kern County Superior Court alleging fraud and conversion against Plaintiff. (Complaint, ¶ 4.)

In the underlying Kern County action, Defendant Holly Walker, acting as counsel for Buckeye Retirement Co., LLC and as an officer of the court, affirmatively alleged and represented that Plaintiff Andres Martinez Jr. committed identity theft and forgery... [¶] Those representations were false. (Complaint, ¶¶ 23-24.)

Walker fabricated or materially embellished allegations of identity theft and forgery to manufacture standing, avoid statute-of-limitations bars, and justifying pursuing Martinez as a substitute judgment debtor" (Complaint, ¶ 28.)

These fabricated allegations were material. Absent them, Defendants lacked a lawful basis to obtain the judgment, revive it, or later weaponize it against Plaintiffs' homestead residence. (Complaint, ¶ 29.)

On April 26, 2007, the court granted summary judgment solely because it noted "NO OPPOSITION", without adjudicating the merits. (Complaint, ¶ 9.)

The judgment was therefore obtained through extrinsic fraud and/or extrinsic mistake, depriving Plaintiff of his day in court. (Complaint, ¶ 10.)

Years later, the judgment was renewed, assigned, and ultimately transferred to WFG. In 2021-2022, Defendant s sought to enforce the judgment against Plaintiff's primary residence in Riverside County. (Complaint, ¶¶ 11-12.)

On May 19, 2022, the court issued an order directing a sheriff's sale based on [an] incorrect homestead amount. [¶] ... [¶] On August 18, 2022, the Property was sold at sheriff's sale. (Complaint, ¶¶ 16-19.)

These allegations supply the bases for Plaintiffs' claims against Defendant Walker. Defendant Walker's alleged statements and actions were in connection with the civil lawsuit against Plaintiff Martinez which are protected activities. The anti-SLAPP statute protects statements and writings made before a legislative, executive or judicial proceeding, "or any other official proceeding authorized by law." (Code Civ. Proc., §425.16(e)(1); See *Okorie v. Los Angeles Unified School Dist.* (2017) 14 Cal.App.5th 574, 594.) "The anti-SLAPP statute protects all petition-related activity before a governmental body whether or not the statements involve a public issue: "[A]ll that matters is that the First Amendment activity take place in an official proceeding or be made in connection with an issue being reviewed by an official proceeding." (*Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1116.) Second, the

statute protects “any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law.” (Code Civ. Proc., §425.16(e)(2).) Therefore, Defendant Walker has made the threshold showing of the first prong of the anti-SLAPP statute.

III. Plaintiffs have not met the burden of showing that they will prevail on the merits of his claims.

Once Defendant has met the threshold showing that the alleged claims are based on activities protected under the anti-SLAPP statute, the burden then shifted to Plaintiffs to demonstrate a reasonable probability of prevailing on the merits of their causes of action to show that it is legally sufficient and supported by a sufficient prima facie showing of facts by submitting evidence, if credited, would sustain a favorable judgment. (*Navellier v. Sletten, supra*, 29 Cal.4th at 89.) Here, because the motion is unopposed, Plaintiffs have failed to meet this burden as no evidence was submitted to demonstrate a reasonable probability of prevailing on the merits of their claims.

It may be argued that the Complaint is verified and may stand as evidence in proving merits. However, even if the allegations of the Complaint are credited and Plaintiffs are thereby able to make a prima facie evidentiary showing, “the claims may still be stricken if the defendant can establish a complete affirmative defense to the claims.” (*Dwight R. v. Christy B., supra*, (2013) 212 Cal.App.4th 697, 714.) Here, Defendant Walker correctly notes that her alleged activities are protected by the litigation privilege. Civil Code section 47, subdivision (b), provides that a “privileged publication or broadcast is one made...[i]n any...judicial proceeding, or...in any other official proceeding authorized by law.” The privilege applies to communications in connection with potential litigation or one that was contemplated in good faith and under serious consideration. (*A.F. Brown Electrical Contractor, Inc. v. Rhino Elec. Supply, Inc.* (2006) 137 Cal.App.4th 1118, 1128.) Here the official proceeding underlying the privilege is the civil lawsuit filed by Defendant Walker on behalf of her client in the Kern Superior Court (Case No. S-1500-CV258449). (See Request for Judicial Notice, Ex. A.) Defendant Walker’s statements made in furtherance, and within these proceedings, without evidence of their falsity, were privileged activities authorized by law.

Plaintiffs have not submitted an opposition addressing affirmative defense under the litigation privilege of Civil Code section 47, subdivision (b). Therefore, Plaintiffs have not sufficiently demonstrated the reasonable probability of succeeding on their claims. As such, Defendant Walker’s special motion to strike under the anti-SLAPP statute is granted.

IV. Request for fees

Defendant Walker seeks fees and costs of \$13,334.15 incurred in connection with the instant motion. Code of Civil Procedure section 425.16, subdivision (c)(1), authorizes the Court to award fees and costs reasonably incurred by a moving defendant in connection with bringing the special motion to strike under the anti-SLAPP statute. Based on statutory language, the fees and costs are mandatory. (Code Civ.

Proc., § 425.16(c) [“prevailing defendant on a special motion to strike shall be entitled to recover that defendant’s attorney’s fees and costs”).] The Court finds the requested amount is reasonable and awards fees and costs of \$13,334.15 to Defendant Walker. Plaintiffs are ordered to pay the awarded amount no later than 30 days from the date of this order.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600422	MARTINEZ vs BUCKEYE RETIREMENT CO., LLC	DEMURRER ON COMPLAINT

Tentative Ruling:

Demurrer is moot, based upon Court’s ruling on ANTI-SLAPP MOTION (SPECIAL MOTION TO STRIKE).

5.

CASE #	CASE NAME	HEARING NAME
CVRI2601403	MORGAN vs CUSHMAN & WAKEFIELD	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Summary of Ruling: The Court grants the motion and stays the matter pending arbitration. The Court overrules the evidentiary objections.

Factual / Procedural Context:

Tiyiesha Morgan (“Plaintiff”) was employed by Cushman & Wakefield (“Defendant”) as an assistant property manager. She contends that the apartment complex where she worked was kept in an unsafe condition because there was a lack of security, which resulted in unhoused individuals breaking into apartment units. She asserts that these break-ins and concern for her safety caused her stress, which resulted in her needing to take a leave of absence due to her mental health. After being out on medical leave for approximately seven months, Plaintiff received a letter from Defendant indicating that Plaintiff’s leave appeared indefinite. It demanded that Plaintiff provide more documentation from her healthcare provider within a week or her employment would be terminated. Plaintiff complied with the request for additional information and had her physician fill out a form sent by Defendant. Even though Plaintiff provided the requested information, she was sent a letter dated October 3, 2024, indicating that her employment has been terminated due to her indefinite leave.

The complaint asserts the following causes of action: (1) discrimination on the basis of disability, (2) failure to engage in a good-faith interactive process, (3) failure to reasonably accommodate a known disability and retaliation for requesting a reasonable accommodation, (4) retaliation, (5) failure to prevent discrimination and/or retaliation, (6)

retaliation in violation of Labor Code § 1102.5, (7) retaliation in violation of Labor code § 6310, (8) wrongful termination in violation of public policy, and (9) negligent hiring, retention, and/or supervision.

Defendant brings this motion seeking to compel this matter to arbitration and dismissing or staying this matter pending the completion of arbitration. It asserts that Plaintiff signed a binding arbitration agreement, which covers the disputes in her complaint. It argues that the Federal Arbitration Act (“FAA”) applies. It contends that the arbitration agreement is not unconscionable.

Plaintiff argues that the arbitration agreement is not signed. As such, Defendant’s motion fails. She asserts that the evidence provided does not establish that she electronically signed any agreement. She also argues that the agreement is unconscionable.

In reply, Defendant reasserts the arguments set forth in its moving papers.

Analysis:

The court must grant a petition to compel arbitration unless it finds either: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (CCP §1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.)

The petition to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (Cal. R. Ct. 3.1330; see *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218–219.) “[U]nder this rule, unless there is a dispute over authenticity, it is sufficient for a party moving to compel arbitration to recite the terms of the governing provision.” (*Sprunk v. Prisma LLC* (2017) 14 Cal.App.5th 785, 793.) A petitioner is not required to authenticate the respondent’s signature on an arbitration agreement as a preliminary matter in the moving papers and is only required to do so if the signature is challenged. (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846.)

Signature: When a party moving to compel arbitration provides a copy of the alleged arbitration agreement that it purports to have the plaintiff’s signature, it meets its initial burden. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755.) While Plaintiff argues that this burden has not been met by Defendant because the arbitration agreement is not signed, this argument lacks merit. The arbitration agreement contains two parts. The first part starts by stating “Dear Applicant” and contains a signature section. (Exhibit A to Declaration of Erinn Cassidy.) The second portion is titled “Issue Resolution.” (*Id.*) This portion of the agreement has a signature section, which is electronically signed. Plaintiff attempts to treat the first portion of the agreement as the

only portion that contains an arbitration agreement. However, this is incorrect. The second portion is also an arbitration agreement. It clearly states that “Company and You agree to arbitrate all Covered Claims”, which includes “any and all disputes, controversies, or claims between Company and You that arise out of or relate in any way to an employment relationship or potential relationship between You and the Company . . .” (Exhibit A, Issue Resolution Rules, Rule 2.) “Company” is defined as Defendant and “You” is defined as the employee or candidate. The second part of the agreement appears to cover the claims at issue in Plaintiff’s complaint and contains an electronic signature. Due to this, Defendant has met its initial burden.

Plaintiff contends that she does not recall signing the agreement. (Declaration Tiyesha Morgan, ¶ 5) This is sufficient to meet Plaintiff’s burden when an electronic signature is involved and requires Defendant to prove by a preponderance of the evidence that the electronic signature belonged to Plaintiff. (*Ruiz, supra*, 232 Cal.App.4th at 846; *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 167.) Defendant argues that more than Plaintiff’s failure to recall is needed to meet her burden of proof. However, binding California authority indicates that this evidence is sufficient when an electronic signature is involved.

Under Civil Code § 1633.9(a), “An electronic record or electronic signature is attributable to a person if it was the act of the person. The act of the person may be shown in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable.” “[A] party may establish that the electronic signature was ‘the act of the person’ by presenting evidence that a unique login and password known only to that person was required to affix the electronic signature, along with evidence detailing the procedures the person had to follow to electronically sign the document and the accompanying security precautions.” (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 545.) In *Ruiz, supra* 232 Cal.App.4th at 843-846, the court found that a generic assertion alone that the electronic signature belonged to the defendant was not sufficient.

In the moving documents, Defendant provides a declaration from Erinn Cassidy. She is the Executive Managing Director for Defendant since July 2023 and for nearly seven years before this was Defendant’s Vice-President of Human Resources. (Declaration of Erinn Cassidy, ¶ 2.) She states that Defendant uses WorkDay applicant tracing system, which requires each applicant, including Plaintiff, to create a unique username and password to access Defendant’s electronic application packet, which includes the arbitration agreement. (*Id.* at ¶ 6.) To complete the job application, Plaintiff was required to review and electronically sign the arbitration agreement through WorkDay, which automatically places the e-signature on the last page of the arbitration agreement. (*Ibid.*) She indicates that the arbitration agreement cannot be altered by anyone at Defendant without the job applicant or employee’s knowledge or permission. (*Ibid.*) This is sufficient to meet Defendant’s burden

Unconscionability: Plaintiffs contend that this motion should be denied because the agreement is unconscionable. “Unconscionable arbitration agreements are not enforceable.” (*Wherry v. Award, Inc.* (2011) 192 Cal.App.4th 1242, 1245.) “To be voided

on this ground, the agreement must be both procedurally and substantively unconscionable.” (*Ibid.*) “But they need not be present to the same degree.” (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114 (*Armendariz*)). Rather, the court invokes a “sliding scale” to determine unconscionability: “The more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (*Ibid.*) “The burden of proving unconscionability rests upon the party asserting it.” (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 126.) Unconscionability is a question of law. (*Malone v. Superior Court* (2014) 226 Cal.App.4th 1551, 1562.)

Procedural Unconscionability: Procedural unconscionability may be proven by showing of oppression which is present when a party is given no meaningful opportunity to negotiate the terms of the contract which is presented on a take-it-or-leave-it basis. (*Wherry v. Award, Inc., supra*, 192 Cal.App.4th at 1246.) Plaintiff contends that the arbitration agreement is procedurally unconscionable because it is a contract of adhesion. A contract of adhesion is a standardized contract that relegates the individual with less bargaining strength to either accept the terms as is, with no opportunity to negotiate or to reject the agreement. (*Armendariz, supra*, 24 Cal.4th at 113.) Defendant asserts this argument fails because the agreement allows an employee to withdrawal from the agreement within three days of signing it. However, to do so, the individual would also have to withdrawal their application for employment. As such, an employee cannot truly opt out of the agreement without also leaving their employment. Due to this, it appears to be a take-it-or-leave-it agreement and thus there is some degree of procedural unconscionability.

Plaintiff argues that the agreement is also procedurally unconscionable because Defendant did not explain the agreement to her. However, she cites to no authority to support this assertion. I know of no authority that requires such an explanation, except in cases where a party cannot read English. (*Caballero v. Premier Care Simi Valley, LLC* (2021) 69 Cal.App.5th 512, 519.) Plaintiff does not indicate that she cannot read English. As such, this argument is not persuasive.

She asserts that this agreement is also procedurally unconscionable because AAA rules, which the agreement indicates applies, have not been provided. However, Plaintiff does not challenge any of the terms in the applicable AAA rules. The California Supreme Court in *Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1246 noted that the failure to provide the arbitration rules does not provide “a greater degree of procedural unconscionability” because the unconscionability claim must depend on the arbitration rule in question. In other words, the plaintiff must demonstrate that there is something in the rules that he was unaware of that makes them unconscionable. (*Id.*) Plaintiff does not articulate any issue with the AAA rules. As such, this argument fails.

Substantively Unconscionability: Plaintiffs argue that the agreement is also substantively unconscionable. “Substantive unconscionability addresses the fairness of the terms in dispute.” *Wherry v. Award, Inc., supra*, 192 Cal.App.4th at 1248. Under the *Armendariz* standard, at a minimum, the following are requirements of a lawful arbitration contract: (1) a neutral arbitrator; (2) adequate discovery; (3) all types of relief

otherwise available in court; (4) employer must pay arbitrator's fees and all costs unique to arbitration. *Armendariz, supra*, 24 Cal.4th at 102, 118. Plaintiff argues that the agreement is substantively unconscionable for a number of reasons.

Plaintiff argues that rule 7 is substantively unconscionable because it places extreme limitations on the amount of discovery that can be done. The arbitration agreement does place a limitation on discovery. However, it also allows for additional discovery to be sought by either party from the arbitrator. (Exhibit A, Rule. 7.c.) Due to this, there appears to be a way for the parties to obtain adequate discovery, and this provision is not substantively unconscionable. (See *Ramirez v. Charter Communicates, Inc.* (2024) 16 Cal.5th 478, 506.)

She argues that rule 9(a) makes the agreement substantively unconscionable. This provision states that a failure to appear for the arbitration hearing shall result in a waiver by that party of their claims or defenses and the arbitrator shall have the authority to issue an Order of Dismissal with Prejudice. Plaintiff argues that this provision is one sided. However, it applies to both sides. She points to no authority that this provision is improper. As such, this argument fails.

She also argues that rule 9(h) is substantively unconscionable because it limits Plaintiff's ability to contact witnesses and learn how Defendant has resolved similar cases. A confidentiality provision that covers all aspects of arbitration prevents a party from meaningfully engaging in informal discovery or contacting witnesses without violating the confidentiality clause is unconscionable. (*Ramos v. Superior Court* (2018) 28 Cal.App.5th 1042, 1065.) The rule at issue provides:

Unless prohibited by applicable law, all aspects of an arbitration pursuant to these Issue Resolution Rules, including the hearing and record of the proceeding, shall be confidential and shall not be open to the public, except (i) to the extent both Parties agree otherwise in writing, (ii) as may be appropriate in any subsequent proceeding between the parties, or (iii) as may otherwise be appropriate in response to a governmental agency or legal process. All settlement negotiations, mediations, and the results thereof shall be confidential.

Based on the language in subsection (iii), it appears that discovery conducted in arbitration would fit within this exception (it's part of a legal proceeding) and this rule would not be barred by substantive unconscionability.

Additionally, the agreement does include a severance clause. A court has discretion to sever an unconscionable provision, unless the agreement is permeated by unconscionability. (*Armendariz v. Foundation Health Psychcare Services* (2000) 24 Cal.4th 83, 122.) For example, severance is improper where the agreement is completely one-sided in requiring the employee and not the employer to arbitrate. (*O'Hare v. Municipal Resource Consultants* (2003) 107 Cal.App.4th 267, 279.) Severance is improper where the agreement is so unconscionable that severing provisions could not remove the unconscionable taint. (*Nyulassy v. Lockheed Martin Corp.* (2004) 120 Cal.App.4th 1267, 1288.) If the unconscionable provision is collateral

to the main purpose of the agreement, they may be severed. (*Armendariz, supra*, 24 Cal.4th at 124.) The agreement does not appear to be permeated by unconscionability. The problematic provision addressed above appears collateral to the main purpose of the agreement. Severing this provision would be limited in nature. As such, if the Court did not believe that subsections (i) or (iii) were applicable, it could sever this provision.

Since substantive unconscionability has not been established, the motion is granted.

Objections: Plaintiff objects to Erinn Cassidy's declaration. The objections are based on lack of knowledge. However, Ms. Cassidy sets forth her current position in the company and her former position as Vice-President of human resources and her understanding of how the onboard process works. This declaration is sufficient to support her knowledge of said system. As such, these objections are overruled.